

## COURT ONLINE COVER PAGE

IN THE LABOUR COURT OF SOUTH  
AFRICA HELD AT CAPE TOWN

CASE NO: **2026-083299**

In the matter between:

**Wilbur Matthee William Matthee**

Plaintiff / Applicant

and

**AFROCENTRIC HEALTH (RF) (PTY)  
LTD, MEDSCHEME HOLDINGS (PTY)  
LTD**

Defendant / Respondent

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### Proof of Service

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**NOTE:** This document was filed electronically by the Registrar on 15/4/2026 at 12:28:05 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED BY:

**Registrar of The Labour Court,  
Cape Town**

**IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN**

(Held at Cape Town)

Case No: 2026-083299

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*In the matter between:*

**WILBUR WILLIAM MATTHEE** Applicant

and

**AFROCENTRIC HEALTH (RF) (PTY) LTD** First Respondent

(Registration Number: 1996/009540/07)

and

**MEDSCHEME HOLDINGS (PTY) LTD** Second Respondent

(Registration Number: 1970/015014/07)



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**AFFIDAVIT OF SERVICE**

(Rule 7 of the Labour Court Rules — Email Service)

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**1. INTRODUCTION AND CAPACITY**

**1.1** I am the Applicant in the above-captioned proceedings, acting in my own capacity as a self-represented litigant. I am duly authorised to make this affidavit. The facts herein are within my personal knowledge unless otherwise stated, and are true and correct to the best of my knowledge and belief.

**1.2** I make this affidavit in compliance with Rule 7 of the Rules for the Conduct of Proceedings before the Labour Court (GN 1665 of 14 October 2011, as amended), to confirm the service of the Statement of Claim on the First and Second Respondents.

**2. THE PROCEEDINGS**

**2.1** This Statement of Claim was filed with the Registrar of the Labour Court, Cape Town, on or before 8 April 2026, within the 90-day prescription period prescribed by section 191(11)(a)(i) of the Labour Relations Act 66 of 1995 ("LRA"), calculated from 9 January 2026 (date of issue of the CCMA Certificates of Non-Resolution in Cases WECT23564-25 and WECT24486-25).

**2.2** The Statement of Claim is filed in respect of the following causes of action:

- (a) Automatically unfair constructive dismissal under sections 186(1)(e) and 187(1)(h) of the LRA (retaliation for protected disclosures);
- (b) Unfair discrimination and harassment under sections 6(1), 6(3), and 60 of the Employment Equity Act 55 of 1998 ("EEA");
- (c) Occupational detriment for making protected disclosures under sections 3 and 4 of the Protected Disclosures Act 26 of 2000 ("PDA");
- (d) Contravention of section 34(2) of the Basic Conditions of Employment Act 75 of 1997 ("BCEA") — unlawful salary deduction exceeding the statutory 25% cap;
- (e) Contravention of section 42 of the BCEA — failure to provide a true Certificate of Service;
- (f) Contravention of section 5(1) of the Unemployment Insurance Contributions Act 4 of 2002; and
- (g) Misappropriation of intellectual property and copyright infringement under section 23 of the Copyright Act 98 of 1978 — CPD programme developed by the Applicant in April 2025 and implemented by the Second Respondent without attribution in October 2025.

### **3. AUTHORISED SERVICE ADDRESS OF RESPONDENTS**

**3.1** The First Respondent's authorised email address for service of documents in these proceedings is:

**IR@afrocentrichealth.com**

**3.2** This email address was expressly stated by the Respondent's authorised representative, Mr Xolile Vincent Manyati (Senior Employee Relations Specialist, AfroCentric Health (Pty) Ltd), in the Respondent's Notice of Opposition of Condonation Application filed in CCMA Case WECT23564-25 on 10 December 2025 and signed at Johannesburg. A copy of the relevant page confirming the authorised service address is attached hereto as ANNEXURE "A".

**3.3** Service on the First Respondent at the above address constitutes valid service on the Second Respondent, Medscheme Holdings (Pty) Ltd, as the Second Respondent is a wholly-owned subsidiary of the First Respondent and shares the same employment relations infrastructure and legal representative.

### **4. SERVICE EFFECTED**

**4.1** On 13 April 2026 I dispatched by email to the address [IR@afrocentrichealth.com](mailto:IR@afrocentrichealth.com) and [lebohang.mpumlwana@afrocentrichealth.com](mailto:lebohang.mpumlwana@afrocentrichealth.com) the following documents constituting the Statement of Claim and supporting papers in the above proceedings:

- (a) Statement of Claim (Rule 6 of the Labour Court Rules) — Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd (constructive dismissal / EEA / PDA / BCEA / copyright);
- (b) The complete bundle of Annexures "A" through "Z" and "AA" through "EE" as listed in the Schedule of Annexures forming part of the Statement of Claim; and
- (c) This Affidavit of Service together with Annexures "A" through "E" hereto.

**4.2** The email was sent from info@ethichawks.co.za. A copy of the email transmission record and delivery confirmation is attached hereto as ANNEXURE "B".

### **5. CONFIRMATION OF SERVICE**

**5.1** Service was effected by electronic mail to the address expressly designated by the Respondent, which constitutes valid service in terms of Rule 7(2)(b) of the Labour Court Rules.

**5.2** I confirm that as of the date of this affidavit, the First and Second Respondents have been duly served with the Statement of Claim and all annexures in the above proceedings, and are properly on notice of the relief sought.

**5.3** The filing deadline in terms of section 191(11)(a)(i) of the LRA is 9 April 2026. Service and filing was effected on 8 April 2026, which is within the prescribed period.

### **6. EXPLANATION REGARDING ELECTRONIC UPLOAD AND TECHNICAL DIFFICULTIES**

**6.1** I respectfully draw the Court's and the Respondents' attention to the timeline regarding the electronic uploading of the Statement of Claim.

**6.2** While service of the Statement of Claim and all annexures was duly filed on 7 April 2026 (prior to the 9 April 2026 deadline), I subsequently experienced severe and persistent technical difficulties with the electronic filing system / Court Online portal when attempting to upload the documents for formal registration.



6.3 Despite my diligent and repeated attempts to upload the filing, the system failed to process the documents due to these technical errors, which were entirely beyond my control the court administration and Director of Court operations Ms R David aware of the obstructions.

6.4 The system finally permitted the successful upload and registration of the Statement of Claim and the accompanying Index and Annexure Bundle today by the registrar, 13 April 2026, at approximately 11:58 AM SAST.

6.5 I respectfully submit that my obligations regarding service within the prescribed 90-day period were met on 8 April 2026, and that the administrative delay in the digital registration of the file was solely due to the aforementioned technical system failures.

### **DEPONENT'S DECLARATION**

I, WILBUR WILLIAM MATTHEE, declare that the facts set out in this affidavit are within my personal knowledge and are to the best of my knowledge and belief true and correct.



**WILBUR WILLIAM MATTHEE**

Applicant / Deponent

info@ethichawks.co.za | Tel: 069 635 1435 / 063 378 8782

Signed at CAPE TOWN on 13 April 2026

### **COMMISSIONER OF OATHS**

Full Name: BENJAMIN J. MASEMOLA

Designation / Capacity: BD 25513

Address: 18 DIGTEBY CRESCENT VOORBRUG DELFT

I certify that on this 13<sup>TH</sup> day of APRIL 2026, the deponent appeared before me and acknowledged that:

- (a) he knows and understands the contents hereof;
- (b) he has no objection to taking the prescribed oath;
- (c) he considers the oath to be binding on his conscience; and
- (d) he uttered the words "I swear that the contents of this declaration are true, so help me God."

**WILBUR WILLIAM MATTHEE**

**COMMISSIONER OF OATHS**

Signed at CAPE TOWN on this 13<sup>th</sup> day of APRIL 2026

**ASTOR BENJAMIN J. MASEMOLA**  
MARRIAGE OFFICER  
COMMISSIONER OF OATHS  
No. 18 DIGTEBY CRESCENT  
VOORBRUG DELFT 7100  
Cell: 082 891 0844

## A N N E X U R E

“A”

## NOTICE OF OPPOSITION OF CONDONATION APPLICATION

*Confirming Respondent's Authorised Email Service Address*

|                                 |                                                                  |
|---------------------------------|------------------------------------------------------------------|
| <b>Forum</b>                    | Commission for Conciliation, Mediation and Arbitration           |
| <b>Case Reference</b>           | WECT23564-25                                                     |
| <b>Parties</b>                  | Wilbur Matthee (Applicant) v Medscheme Holdings (Respondent)     |
| <b>Document Type</b>            | Notice of Opposition of Condonation Application                  |
| <b>Deponent</b>                 | Mr Xolile Vincent Manyati — Senior Employee Relations Specialist |
| <b>Signed</b>                   | Johannesburg, 10 December 2025                                   |
| <b>Authorised Service Email</b> | IR@afrocentrichealth.com                                         |
| <b>Relevance</b>                | Paragraph 3.2 — Respondent's own designated service address      |

*Referred to in paragraph 3.2 of the Affidavit of Service*

Matthee v AfroCentric Health (RF) (Pty) Ltd &amp; Medscheme Holdings (Pty) Ltd · Case No: 2026-083299

IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION

Case Ref. Number: **WECT23564-25**

In the matter between

**WILBUR MATTHEE**

**Applicant**

And

**MEDSCHEME HOLDINGS**

**Respondent**



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**NOTICE OF OPPOSITION OF CONDONATION APPLICATION**

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Your condonation application dated **05 December 2025**, is hereby acknowledged and refers.

In response to the condonation application by the applicant **BE PLEASED TO TAKE NOTE THAT** the Respondent hereby files its Notice of Opposition.

**PLEASE TAKE FURTHER NOTE THAT** the answering affidavit of **Mr XOLILE VINCENT MANYATI** will be used in support of this notice of opposition.

The respondent will accept all documents in this matter at the following email address:  
[IR@afrocentrichealth.com](mailto:IR@afrocentrichealth.com).

Signed at **Johannesburg** on the **10<sup>th</sup>** day of **December 2025**.

A handwritten signature in black ink, appearing to read 'X. Manyati', written over a horizontal line.

**XOLILE VINCENT MANYATI**

Respondent representative

## A N N E X U R E

# “B”

## EMAIL TRANSMISSION RECORD — PROOF OF SERVICE

*Electronic service effected 13 April 2026*



|                        |                                                                                            |
|------------------------|--------------------------------------------------------------------------------------------|
| <b>Case Number</b>     | 2026-083299                                                                                |
| <b>From</b>            | info@ethichawks.co.za (Wilbur William Matthee)                                             |
| <b>To (Primary)</b>    | ir@afrocentrichealth.com                                                                   |
| <b>To (Copy)</b>       | lebohang.mpumlwana@afrocentrichealth.com                                                   |
| <b>Bcc</b>             | wilburmat@gmail.com (personal confirmation copy)                                           |
| <b>Date &amp; Time</b> | 13 April 2026 at 12:48 PM SAST                                                             |
| <b>Subject</b>         | Service of Statement of Claim — W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another |
| <b>Read Receipt</b>    | Double blue tick (✓✓) — confirmed delivery and read                                        |
| <b>Relevance</b>       | Paragraph 4.2 — Proof of email service on Respondents                                      |

*Referred to in paragraph 4.2 of the Affidavit of Service*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd · Case No: 2026-083299



# Service of Statement of Claim – W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another (Case No: 2026-083299)

15/4/2026-12:28:05 PM

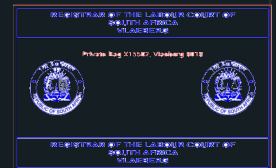
Read receipts



Wilbur William Matthee 12:48 PM  
to ir, lebohang.mpumlwana, Bcc: wilburmat ^



From: info@ethichawks.co.za  
To: ir@afrocentrichealth.com  
Cc: lebohang.mpumlwana@afrocentrichealth.com  
Bcc: wilburmat@gmail.com  
Date: Apr 13, 12:48 PM



Dear Respondent's Legal Representative,

Please find attached the Statement of Claim and accompanying Index and Annexure Bundle in the matter between Wilbur William Matthee and Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd.

These documents were filed electronically with the Registrar of the Labour Court of South Africa, Cape Town, under Case Number 2026-083299, on 13 April 2026.

Kindly acknowledge receipt of this email and the attached documents.

Yours faithfully,

Wilbur W. Matthee

 matthee\_statement\_of\_claim\_2026.04.13.11.58.pdf

